



June 5th 2017 Delaware County Commissioners Meeting

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=ViRf53L4yBM
Publication Date	2017-06-05T20:43:13Z
Target Category	delaware_county

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Municipal Meeting Report: Delaware County Commissioners

1. Pre-Hearing & Committee Work Sessions

- **Session Type & Topic:** Public Hearing on the assignment of a tax sale property to a nonprofit corporation at 10 East 7th Street [00:00:46](#).
- **Summary of Discussion:** Pastor Todrick Gordon of the Urban Light Church (1400 South Madison Street) testified in support of the transfer [00:01:07](#). He noted that the property is located across the street from the church and is utilized for community events such as block parties, health fairs, and job fairs on the east side of Madison Street [00:01:30](#). No opposing testimony was presented.

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Presiding officer called the Delaware County Commissioners meeting to order on Monday, June 5, 2017 [00:00:06](#).
- **Attendance:**
 - **Members Present:** Mr. Henry, Ms. Riggan, and Mr. King (Presiding Officer/President).
 - **Members Absent:** None noted.
 - **Presiding Officer:** Mr. King.

3. Preliminary & Procedural Business

- **Ceremonial Openings:** The meeting opened with the Pledge of Allegiance led by the board 00:00:19.
- **Approval of Minutes:** The minutes of the May 15, 2017 meeting were approved by voice vote (Approved by Voice Vote) following a motion and second 00:04:30.

4. Substantive Business & Board Action

- **00:02:47 Resolution Number 2017-021 (Removal from Table):**
 - **Sponsor / Presenter:** Board / Legal Counsel.
 - **Deliberation Summary:** Counsel explained that the Muncie Housing Authority is a nonprofit corporation and must proceed through the proper nonprofit process rather than submitting a resolution structured for a governmental entity 00:03:16.
 - **Action & Vote Disposition:** Motion to remove from the table and remove from consideration approved by voice vote (Passed Unanimously) 00:03:55.
- **00:04:44 Equipment Support Service Agreements (Juvenile Probation & Community Corrections):**
 - **Sponsor / Presenter:** Sharon McCormick, Financial Manager for Community Corrections 00:05:17.
 - **Deliberation Summary:** Two annual agreements with VI Incorporated for equipment owned by Juvenile Probation and Community Corrections (Agreements 052617-FLF1 and 050917-W) were presented. Legal counsel reviewed and found them appropriate 00:05:07.
 - **Action & Vote Disposition:** Approved by voice vote (Passed Unanimously) 00:05:40.
- **00:05:47 Petition for County Road Improvements (A Better Life / Brianna):**
 - **Sponsor / Presenter:** Board.
 - **Deliberation Summary:** The petition was presented regarding road improvements for Brianna.
 - **Action & Vote Disposition:** Motion to table carried by voice vote (Approved by Voice Vote) 00:06:05.
- **00:06:17 Ordinance Number 2017-011: Construction Site and Post-Construction Site Stormwater Controls (Second Reading):**
 - **Sponsor / Presenter:** County Stormwater Department 00:07:08.
 - **Deliberation Summary:** This ordinance represents an update and clarification combining stormwater construction controls, post-construction controls, and illicit discharge regulations into a single document to improve clarity and address audit requirements from October 00:07:10.

- **Action & Vote Disposition:** Adopted on second reading by voice vote (Passed Unanimously) [00:07:45](#).
- **00:07:56 Ordinance Number 2017-012: Force Account Project Ordinance (Second Reading):**
 - **Sponsor / Presenter:** Board.
 - **Deliberation Summary:** Confirms fidelity requirements under Indiana Code for public works projects. Projects utilizing internal staff over \$100,000 require commissioner approval, and projects over \$250,000 must be formally bid pursuant to IC 36-1-3 [00:08:02](#).
 - **Action & Vote Disposition:** Adopted by voice vote (Passed Unanimously) [00:08:34](#).
- **00:08:52 Resolution Number 2017-026: Nonprofit Transfer:**
 - **Sponsor / Presenter:** Board.
 - **Deliberation Summary:** Resolution concerning nonprofit property transfer.
 - **Action & Vote Disposition:** Approved by voice vote (Passed Unanimously) [00:09:11](#).
- **00:09:24 Resolution Number 2017-027: Identification of Parcels for Sale to Adjacent Property Owners:**
 - **Sponsor / Presenter:** Deputy / Staff.
 - **Deliberation Summary:** Involves 30 vacant lots from multiple tax sales offered to adjacent property owners [00:09:37](#). If approved, notification letters with a two-week response window will be sent to adjacent owners [00:09:56](#).
 - **Action & Vote Disposition:** Approved by voice vote (Passed Unanimously) [00:10:16](#).
- **00:13:47 Ordinance Number 2017-011B: Amendment to Stormwater Ordinance:**
 - **Sponsor / Presenter:** County Staff / Drainage Management.
 - **Deliberation Summary:** Minor word amendment to establish proper account setup for receiving stormwater funds [00:13:50](#).
 - **Action & Vote Disposition:** Introduced as first reading by voice vote (Approved by Voice Vote) [00:15:11](#).
- **00:15:25 Monthly Account Write-Offs & Receipts:**
 - **Sponsor / Presenter:** Department Head.
 - **Deliberation Summary:** May total account write-offs amounted to \$310,098.23, offset by received payments totaling \$249,068.20 [00:15:33](#).
 - **Action & Vote Disposition:** Approved by voice vote (Passed Unanimously) [00:15:52](#).
- **00:17:08 Personnel Policy Modification (Reserve Deputies / Dual Employment):**
 - **Sponsor / Presenter:** Legal / Administrative Staff.
 - **Deliberation Summary:** Addressed Fair Labor Standards Act (FLSA) compliance regarding county employees (specifically 911 dispatchers and EMS staff) serving as

Delaware County Volunteer Reserve deputies without incurring overtime, as job duties are not overlapping or similar in nature 00:17:20.

- **Action & Vote Disposition:** Motion to modify personnel policy approved by voice vote (Passed Unanimously) 00:19:12.
 - 00:19:29 **Acceptance of Warranty Deed (Morrison TIF Sidewalk Project):**
 - **Sponsor / Presenter:** Administrative Staff.
 - **Deliberation Summary:** Acceptance of a small property deed from Vernon and Captain Faulkner along Morrison Road for the Morrison TIF sidewalk project 00:19:32.
 - **Action & Vote Disposition:** Approved by voice vote (Passed Unanimously) 00:19:52.
 - 00:20:05 **Weekly Payment Claims:**
 - **Sponsor / Presenter:** Board.
 - **Deliberation Summary:** Review of weekly claims totaling \$2,380,014.98 00:20:10.
 - **Action & Vote Disposition:** Approved by voice vote (Passed Unanimously) 00:20:24.
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5. Open Public Comment / Citizen Forum

- 00:21:01 **Mike Jacobs (2800 West Sequoia Court, Country Village):**
 - Expressed gratitude for past interdepartmental assistance with neighborhood drainage, leaf removal, and crack sealing. Noted that neighborhood volunteers spent over 250 hours removing 54 truckloads of leaves to protect drainage systems. Requested county assistance to repave a critical 1-third-mile stretch of Sacramento Street (from Ravenwood to Yosemite) which is heavily degraded and damaging snow removal equipment.
- 00:27:25 **Lori Crouch (8500 West Long Beach Drive / Westbrook area):**
 - Spoke on behalf of citizens and ratepayers of the Delaware County Regional Wastewater District, alleging fiscal neglect and lack of infrastructure maintenance (citing lift station odors and wastewater in residential yards). Presented a financial summary compiled with Yorktown Town Manager Pete Olson, asserting that ratepayers have paid over \$5 million since 2010, leaving an estimated \$1.7 million unallocated to operational maintenance. Called for an external audit of the wastewater district, specifically highlighting accounting opacity in Westbrook and Daleville.

(Note: During public comment, administrative staff interjected to note that conversations with independent auditing groups regarding a full-blown audit of the regional wastewater district are ongoing and expected to be brought forward at the next meeting 00:34:02.)

6. Administrative Updates & Adjournment

- **Staff / Board Announcements:**

- Mention of the upcoming youth camp running June 19<U+2013>24 with 70 kids registered so far 00:16:10.
- Plan Commission noted that 2017 aerial photography flights by Pictometry are completed and files are in-house 00:11:05.

- **Adjournment:** The meeting recessed/adjourned following a final motion by voice vote (Approved by Voice Vote) 00:34:39.

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